

The Indian Medical Council (Amendment) Act, 2001

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[An Act further to amend the Indian Medical Council Act, 1956.](#)

[BE it enacted by Parliament in the Fifty- second Year of the Republic of India as follows:-](#)

[1.](#)

[Short title.-](#)

[This Act may be called the Indian Medical Council \(Amendment\) Act, 2001 .](#)

[2.](#)

[Amendment of section 13.-](#)

[In the Indian Medical Council Act, 1956 \(](#)

[102 of 1956](#)

[\) \(hereinafter referred to as the principal Act\), in section 13,-](#)

[\(a\)](#)

in sub- section (3), after the words" granted by medical institutions outside India", the words" before such date as the Central Government may, by notification in the Official Gazette, specify" shall be inserted;

(b)

in sub- section (4), the following provisos and Explanation shall be inserted at the end, namely:-'

Provided that after the commencement of the Indian Medical Council (Amendment) Act, 2001 , no such amendment shall be made in Part II of the Third Schedule to include any primary medical qualification granted by any medical institution outside India:

Provided further that nothing contained in the first proviso shall apply to inclusion in Part II of the Third Schedule any primary medical qualification granted by any medical institution outside India to any person whose name is entered in the Indian Medical Register. Explanation.- For the purposes of this sub- section," primary medical qualification" means any minimum qualification sufficient for enrolment on any State Medical Register or for entering the name in the Indian Medical Register.';

(c)

after sub- section (4), the following sub- sections shall be inserted, namely:-

(4A)

A person who is a citizen of India and obtains medical qualification granted by any medical institution in any country outside India recognised for enrolment as medical practitioner in that country after such date as may be specified by the Central Government under sub- section (3), shall not be entitled to be enrolled on any Medical Register maintained by a State Medical Council or to have his name entered in the Indian Medical Register unless he qualifies the screening test in India prescribed for such purpose and such foreign medical qualification after such person qualifies the said screening test shall be deemed to be the recognised medical qualification for the purposes of this Act for that person.

(4B)

A person who is a citizen of India shall not, after such date as may be specified by the Central Government under sub- section (3), be eligible to get admission to obtain medical qualification granted by any medical institution in any foreign country without obtaining an eligibility certificate issued to him by the Council and in case any such person obtains such qualification without obtaining such eligibility certificate, he shall not be eligible to appear in the screening test referred to in sub- section (4A):

Provided that an Indian citizen who has acquired the medical qualification from foreign medical institution or has obtained admission in foreign medical institution before the commencement of the Indian Medical Council (Amendment) Act, 2001 shall not be required to obtain eligibility certificate under this sub- section but, if he is qualified for admission to any medical course for recognised medical qualification in any medical institution in India, he shall be required to qualify only the screening test prescribed for enrolment on any State Medical Register or for entering his name in the Indian Medical Register.

(4C)

Nothing contained in sub- sections (4A) and (4B) shall apply to the medical qualifications referred to in section 14 for the purposes of that section."

3.

Amendment of section 33.-

In section 33 of the principal Act, after clause (m), the following clause shall be inserted, namely:-

" (ma) the modalities for conducting screening tests under sub- section (4A), and under the proviso to sub- section (4B), and for issuing eligibility certificate under sub- section (4B), of section 13;"

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